

		Accordingly, each element of the Goonewardene three-part test have been met. First, by naming Defendant as a third-party beneficiary, the Lease evinces an intention to directly benefit Defendant by allowing it to take advantage of the arbitration provisions. Second, a motivating purpose of the contracting parties was to provide Defendant with a benefit, i.e. the power to compel arbitration. Third, since the contracting parties' specifically named Defendant as a third-party beneficiary, allowing Defendant to enforce the arbitration provisions is consistent with the contracting parties' reasonable expectations. Therefore, Defendant is an expressly intended third-party beneficiary who may compel arbitration under the Lease. (See Ochoa, supra, 89 Cal.App.5th at p. 1339 [noting that "[i]f the signatories had intended to benefit FMC, such a purpose would have been easy to articulate. They could have simply named FMC—directly or by class as the vehicle's manufacturer—as a person entitled to compel arbitration. But they did not."]; see also Ngo, supra, 23 F.4th at p. 948 [similarly noting "the parties easily could have indicated that the contract was intended to benefit BMW—but did not do so."].) The court therefore finds Defendant is an intended third-party beneficiary under Goonewardene. The motion is GRANTED. The court STAYS this action pending resolution of the parties' arbitration. (Code Civ. Proc., § 1281.2.) Defendant to give notice.
4	2023-01326675 <i>Contreras vs. Costa Mesa Knockout, LLC</i>	Motion to Enforce Settlement The unopposed motion of plaintiff Adrian Contreras for an order enforcing a settlement with defendants Costa Mesa Knockout, LLC, Paige Hopkins, and Kevin Reilly and entering judgment on it is GRANTED. Judgment requiring defendant to pay plaintiff \$35,000 will be entered.
5	2023-01318166 <i>Gilleland vs. Patterson</i>	Motion to Compel Deposition (Oral or Written) Defendant Martha G. Patterson's Motion to Compel Compliance with the Deposition Subpoena for Business Records from Nonparty FEM Law Group P.C. is DENIED as moot. Defendant's request for sanctions is GRANTED. FEM Law Group P.C. is ORDERED to pay \$1.352 in sanctions. Defendant's requests for judicial notice are granted as documents of the courts of this state. "If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production." (Code Civ. Proc., § 2025.480(a).)